

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #04	CCRB Case #: 201910324	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 11/22/2019 12:45 AM	Location of Incident: Inside subway station at Marcy Avenue and Broadway	18 Mo. SOL 1/6/2022	Precinct: 90
Date/Time CV Reported Fri, 11/22/2019 3:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/29/2019 11:04 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Horun	10848	928499	090 PCT
2. POF Olga Dudka	23501	967049	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Charles Bruno	16336	957406	090 PCT
2. POM Manuel Munoz	01147	921615	090 PCT
3. POM Sean Baum	21791	959482	090 PCT
4. POM Rodney Fernandez	16671	957580	090 PCT
5. SGT Alvin Law	01574	927064	090 PCT
6. SGT Kevin Chow	02016	951610	090 PCT
7. POF Deirdre Collins	00215	965998	090 PCT
8. SGT Frederick Manney	04797	949938	090 PCT
9. POM Nelson Escobar	12460	943209	090 PCT
10. POM Vincent Realmuto	03014	940617	090 PCT
11. POM Abdel Bryson	30280	966970	090 PCT
12. POM Rodrigo Fernandez	19608	944557	090 PCT
13. POM Jeremy Boyer	16826	936234	090 PCT
14. POM Benjamin Young	05615	945122	090 PCT
15. POM Nicholas Toscano	21842	945332	090 PCT
16. POM Randy Wilson	11283	921863	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Horun	Force: Police Officer Nicholas Horun used physical force against § 87(2)(b)	A . Exonerated
B . POF Olga Dudka	Force: Police Officer Olga Dudka used a non-lethal restraining device on § 87(2)(b)	B . Exonerated
C . POM Nicholas Horun	Discourtesy: Police Officer Nicholas Horun spoke discourteously to § 87(2)(b)	C . Exonerated
D . POM Nicholas Horun	Force: Police Officer Nicholas Horun struck § 87(2)(b) with a blunt instrument.	D . Substantiated

Officer(s)	Allegation	Investigator Recommendation
E . POF Olga Dudka	Force: Police Officer Olga Dudka used a taser against § 87(2)(b)	E . Substantiated
F . POM Nicholas Horun	Force: Police Officer Nicholas Horun used physical force against § 87(2)(b)	F . Substantiated
G . POM Nicholas Horun	Abuse: Police Officer Nicholas Horun forcibly removed § 87(2)(b) to the hospital.	G . Exonerated
H . POF Olga Dudka	Abuse: Police Officer Olga Dudka forcibly removed § 87(2)(b) to the hospital.	H . Exonerated

Case Summary

On November 22, 2019, Sergeant Alvin Law from the 90th Precinct reported this incident to IAB. IAB forwarded this complaint to the CCRB where it was received on November 29, 2019.

On November 22, 2019, at approximately 12:45 a.m., § 87(2)(b) engaged in a physical altercation with an individual on a subway train near the Broadway and Marcy Avenue station in Brooklyn. Police Officers Nicholas Horun and Olga Dudka, both of the 90th Precinct, responded to the scene. PO Horun fought with § 87(2)(b) (**Allegation A: Force, exonerated**). PO Dudka used her taser on § 87(2)(b) (**Allegation B: Force, exonerated**). PO Horun used profanity toward § 87(2)(b) (**Allegation C: Discourtesy, exonerated**). PO Horun struck § 87(2)(b) with his handcuffs (**Allegation D: Force, substantiated**). PO Dudka tased § 87(2)(b) in drive-stun mode (**Allegation E: Force, substantiated**). PO Horun kned § 87(2)(b) (**Allegation F: Force, substantiated**). PO Horun and PO Dudka removed § 87(2)(b) to the hospital (**Allegations G-H: Abuse of Authority, exonerated**). § 87(2)(b) was arrested for assault.

The investigation obtained body-worn camera (BWC) videos from PO Horun, PO Dudka, and multiple witness officers (Board Review 05-24). The investigation also obtained MTA footage, but the videos did not capture the FADOs due to technical issues with the cameras (Board Review 25).

The Patrol Borough Brooklyn North Investigations Unit investigated this incident and substantiated two allegations of force against PO Horun (Board Review 26). No allegations were substantiated against PO Dudka.

Findings and Recommendations

Allegation (A) Force: Police Officer Nicholas Horun used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Olga Dudka used a non-lethal restraining device on § 87(2)(b)

§ 87(2)(b) testified that an individual on the subway, known to the investigation as § 87(2)(b), touched § 87(2)(b) inappropriately on the buttocks (Board Review 01). § 87(2)(b) struck § 87(2)(b) on the head once with a retractable baton causing a laceration on § 87(2)(b) forehead. When the subway arrived at the Broadway and Marcy Avenue station in Brooklyn, § 87(2)(b) exited the car and approached PO Horun and PO Dudka on the platform. § 87(2)(b) told PO Horun and PO Dudka that he was grabbed on the train, and PO Horun grabbed § 87(2)(b) by the collar. § 87(2)(b) fell backward onto a bench, and PO Horun fell on top of him. PO Dudka tased § 87(2)(b) twice (see analysis of **Allegation E** below). First, PO Dudka tased him by putting the taser directly against his hand. Then, PO Dudka tased § 87(2)(b) with the device against his shoulder. The prongs penetrated § 87(2)(b) jacket and burned his skin.

§ 87(2)(b) confirmed § 87(2)(b) struck him on the head with a baton (Board Review 02). A witness called 911 to report the assault, not § 87(2)(b). § 87(2)(b) did not witness the ensuing interaction between § 87(2)(b), PO Horun, and PO Dudka.

The event documents noted that the incident was reported as an assault in-progress with a knife (Board Review 27).

PO Horun and PO Dudka both testified that bystanders identified § 87(2)(b) as the individual who assaulted § 87(2)(b) with a weapon (Board Review 03-04, respectively). PO Dudka and PO Horun believed § 87(2)(b) was the perpetrator of the assault and possessed a weapon.

PO Horun testified that he grabbed § 87(2)(b) left hand in attempt to handcuff him (Board Review 03). § 87(2)(b) pivoted toward PO Horun swinging his arm at him. PO Horun ducked § 87(2)(b) but was struck in the nose by § 87(2)(b) headbutting him. PO Horun grabbed § 87(2)(b) arm and began to struggle back and forth with him. PO Horun and § 87(2)(b) struck each other multiple times until they both moved onto a bench.

PO Dudka testified that she removed her taser from its holster and discharged the taser at § 87(2)(b) midsection (Board Review 04). PO Dudka did this to overcome § 87(2)(b) aggression and stabilize the situation. PO Dudka believed § 87(2)(b) was a danger to the officers and bystanders because of his current fighting with PO Horun and the alleged assault on the train with a weapon.

The body-worn camera (BWC) videos from PO Dudka and PO Horun show that PO Dudka and PO Horun each grabbed one of § 87(2)(b) arms (Board Review 05-06, respectively). PO Horun began handcuffing § 87(2)(b) when § 87(2)(b) asked, “Why am I being arrested?” and PO Dudka replied, “We’ll figure this out,” as shown in PO Dudka’s BWC at the 00:45 minute-mark of the player’s timestamp. § 87(2)(b) pivoted to his right toward PO Horun and said, “You’re going to have to shoot me.” § 87(2)(b) moved back and forth with PO Horun. At 00:50, § 87(2)(b) lunged toward PO Horun. PO Horun gripped § 87(2)(b) by the jacket and forced him onto a bench. At the same time, 00:57, PO Dudka discharged her taser at § 87(2)(b) who continued struggling for a few seconds and then sat still. The video did not show that PO Dudka drive-stunned § 87(2)(b) twice as he described. The video is somewhat unclear at times because of the fast-moving scene.

According to NYPD Patrol Guide Procedure 221-01, officers may use force when it is reasonable to ensure the safety of a member of the service or a third person or when it is reasonable to place a person in custody (Board Review 28). Officers will use only the reasonable force necessary to gain control or custody of a subject, taking into consideration multiple factors including but not limited to the nature and severity of the crime, actions taken by the subject, subject’s violent history if known, and whether the subject is actively resisting custody or evade arrest by flight.

According to NYPD Patrol Guide Procedure 221-08, members of the service should only use a conducted electrical weapon (CEW) against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) present (Board Review 29). Active resisting includes physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody. Active aggression is a threat or overt act of an assault through physical or verbal means, coupled with the present ability to carry out the threat or assault thus reasonably indicating that an assault or injury to any person is imminent.

Although the videos do not clearly depict each individual use of force between PO Horun and § 87(2)(b) in their initial struggle, it is evident that § 87(2)(b) actively resisted being handcuffed and attempted to evade PO Horun and PO Dudka. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

As detailed above, § 87(2)(b) was actively resisting PO Horun and PO Dudka when they attempted to handcuff him. Additionally, § 87(2)(b) actively aggressed at PO Horun by

physically fighting him § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Allegation (C) Discourtesy: Police Officer Nicholas Horun spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege that PO Horun used profanity toward him (Board Review 01). Rather, this action was captured on BWC.

PO Dudka's BWC video showed that PO Horun told § 87(2)(b) "Show me your fucking hands," at the 1:40 minute-mark of the player's timestamp (Board Review 05).

PO Horun testified that he used the word "fucking" in order to show sternness and authority with this command and for no other reason (Board Review 03).

Profane remarks made during stressful situations or while an officer is trying to get a chaotic situation under control are not misconduct, according to DAO-CDT case #2017-170058 (Board Review 30).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation (D) Force: Police Officer Nicholas Horun struck § 87(2)(b) with a blunt instrument.

§ 87(2)(b) testified that PO Horun sat on him on the bench (Board Review 01). § 87(2)(b) tried to stand up but was unsuccessful. PO Horun punched him in the face multiple times while holding his handcuffs. PO Horun held his handcuffs like brass knuckles so that the metal handcuff made contact with § 87(2)(b) face. The other side of the handcuff, the loose end that PO Horun was not holding, whipped § 87(2)(b) in the face. § 87(2)(b) sustained lacerations around his left eye under his eyebrow and on his right cheek.

The investigation was unable to obtain § 87(2)(b) medical records (Board Review 31).

The TRI report stated that § 87(2)(b) received sutures at § 87(2)(b) Hospital to close a wound on the left side of his head (Board Review 32).

PO Horun testified that he held § 87(2)(b) left hand but not his right which was freely moving (Board Review 03). PO Horun looked away toward PO Dudka, and § 87(2)(b) grabbed PO Horun on the left side of his belt. PO Horun punched § 87(2)(b) once with his right hand which was holding his handcuffs. PO Horun was gripping his handcuffs since he tried to handcuff § 87(2)(b). PO Horun still held them because he did not want to drop them in the middle of the fight. PO Horun believed punching § 87(2)(b) was necessary at this point because the first tase did not work and § 87(2)(b) grabbed his belt. The punch was not necessary until § 87(2)(b) grabbed his belt.

PO Dudka testified that § 87(2)(b) moved his right hand toward PO Horun's gun belt (Board Review 04). PO Dudka did not know what § 87(2)(b) was attempting to do, but she feared he might get control of PO Horun's gun or baton. PO Dudka did not see PO Horun punch § 87(2)(b) because she was focused on her taser and radio. After viewing her BWC video during her interview, PO Dudka acknowledged that PO Horun punched § 87(2)(b) but she maintained that she did not see it at the time of incident.

PO Dudka's BWC show this part of the interaction beginning at the 1:25 minute-mark of the player's timestamp (Board Review 05). § 87(2)(b) was pinned under PO Horun who held § 87(2)(b) left hand in his left hand. In his right hand, PO Horun held one handcuff with his pointer and middle finger through the center of the cuff (shown at 1:33). PO Horun told § 87(2)(b) to stop fighting, and § 87(2)(b) said that he has hemophilia type-A. § 87(2)(b) right hand is not visible, but he remained still and made eye contact with PO Dudka until PO Horun punched him at 1:44. § 87(2)(b) went limp, and PO Horun pushed him onto his left side on the bench.

As stated above, officers may use force when it is reasonable to ensure the safety of a member of the service or a third person or when it is reasonable to place a person in custody, per NYPD Patrol Guide Procedure 221-01 (Board Review 28). Officers will use only the reasonable force necessary to gain control or custody of a subject and shall not use any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

§ 87(2)(g)
While § 87(2)(b) right arm could not be seen in the BWC video, § 87(2)(b) upper arm did not move while PO Horun had him restrained. § 87(2)(g)
§ 87(2)(b) was sitting still and not physically resisting when PO Horun punched him in the face. § 87(2)(g)
Therefore, it is recommended that **Allegation D** be closed as **substantiated**.

Allegation (E) Force: Police Officer Olga Dudka used a taser against § 87(2)(b)
§ 87(2)(b) testified that PO Dudka used her taser a second time with the device against his shoulder (Board Review 01). The prongs penetrated § 87(2)(b) jacket and clothes and burned his skin. § 87(2)(b) felt like he was being electrocuted.

PO Dudka testified that she tased § 87(2)(b) a second time because he was still acting aggressively and the first taser deployment was ineffective (Board Review 04). PO Dudka used the taser in drive stun mode against § 87(2)(b) right arm.

PO Dudka's BWC video showed PO Dudka tased § 87(2)(b) beginning at the 1:42 minute-mark of the player's timestamp (Board Review 05). After PO Horun punched § 87(2)(b) and pushed him down onto the bench, § 87(2)(b) laid on his left side with his left arm loose in front of him. PO Dudka tased § 87(2)(b) in drive-stun as shown at 1:51. PO Dudka tased § 87(2)(b) for five seconds. The taser appeared to be in or near § 87(2)(b) right shoulder, at 2:00. § 87(2)(b) who had been repeating, "I have hemophilia type-A," slowed his speech and lowered his voice to a whisper.

According to NYPD Patrol Guide Procedure 221-08, members of the service should only use a CEW against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) present (Board Review 29). It is strictly prohibited to use the CEW on persons who passively resist. Passive resistance is defined as minimal physical action by the subject to prevent a member of service from performing their lawful duty.

§ 87(2)(b) was no longer actively resisting or exhibiting aggression at the time when PO Dudka tased him. In fact, § 87(2)(b) was limp on the bench. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

Allegation (F) Force: Police Officer Nicholas Horun used physical force against § 87(2)(b)

§ 87(2)(b) did not allege that PO Horun struck him with his knee (Board Review 01). Rather, this action was captured on BWC.

PO Dudka's BWC showed that § 87(2)(b) laid on the bench after being tased a second time when PO Horun struck § 87(2)(b) twice with his right knee, as shown at the 2:04 minute-mark (Board Review 05). PO Horun appeared to make contact near § 87(2)(b) right arm, but the frame was unclear exactly what part of § 87(2)(b) body was struck.

PO Horun stated that he used "leg strikes" against § 87(2)(b) lower body in order to get control of § 87(2)(b) before he punched § 87(2)(b) (Board Review 03). PO Horun viewed PO Dudka's BWC and amended his statement to say that he used the leg strikes shown in the clip because § 87(2)(b) legs were pushing against PO Horun. PO Horun was unable to describe how § 87(2)(b) legs were pushing against him.

PO Dudka testified that she did not see PO Horun strike § 87(2)(b) with his leg at the time (Board Review 04).

As stated above, officers may use force when it is reasonable to ensure the safety of a member of the service or a third person or when it is reasonable to place a person in custody, per NYPD Patrol Guide Procedure 221-01 (Board Review 28). Officers will use only the reasonable force necessary to gain control or custody of a subject and shall not use any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault.

§ 87(2)(b) was subdued and laying limp on the bench when PO Horun struck him with his legs, as evidenced by the BWC video. Although § 87(2)(b) legs were not shown in the frame, § 87(2)(b) did not seem to be moving in the BWC video. § 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Allegation (G) Abuse of Authority: Police Officer Nicholas Horun forcibly removed § 87(2)(b) to the hospital.

Allegation (H) Abuse of Authority: Police Officer Olga Dudka forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) called the CCRB after providing his testimony and reported over the phone that he was removed to a psychiatric hospital against his will (Board Review 33). As a result, § 87(2)(b) case was being tried in mental health court.

PO Dudka testified that it is NYPD protocol for an individual to be removed to the hospital after being tased (Board Review 04). Additionally, PO Horun testified that it was the decision of EMS, not officers, to remove § 87(2)(b) to the hospital (Board Review 03).

According to NYPD Patrol Guide Procedure 221-08, any person who has been struck by a CEW probe or who has a CEW used on them in drive stun mode must be examined at a medical facility (Board Review 29).

§ 87(2)(g)

Therefore, it is recommended that **Allegations G-H** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) has been a party (Board Review 34).
- PO Horun has been a member of service for 20 years and has been named a subject in 20 cases and 34 allegations, of which the following were substantiated (Board Review 35):
 - 200700837 involved a substantiated allegation of refusal to provide name/shield against PO Horun. The Board recommended Command Discipline, and the NYPD found PO Horun not guilty. The NYPD did not impose discipline.
 - § 87(2)(g)
- PO Dudka has been a member of service for two years, and this is the first CCRB complaint to which she has been a subject (Board Review 35).

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a notice of claim with the City of New York for injuries and loss of personal items and is seeking \$500,000 in damages (Board Review 36). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 4

Investigator:		Inv. Devaney	11/09/2021
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>11/09/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date